

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR C61
HON. JENNIFER M. MCCARTNEY

Date: 6/3/2026

Courtroom Rules and Notices

The Court will continue to upload tentative rulings as they are completed. Please be sure to keep checking until 8:30 AM on the day of your hearing.

Written responses, oppositions, or filings that are filed later than 12:15 PM the day before the hearing on the motion will go on second call by the Court for the Court to have an opportunity to review any last-minute filings. If a party files a written response, opposition, or any filing after 12:15 PM on the day before the hearing, the party must ensure they are available for the court's afternoon calendar the day of the hearing.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5261 – both counsel need to state they are submitting on the tentative. Please do not call the Department unless all parties submit to the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

#	Case Name	Tentative
8	30-2026-01567331 Phan v. Twaite	The Court has read and considered the Defendant's Demurrer to the Complaint (ROA 10) and the Complaint (ROA 2). The Court OVERRULES the Demurrer. The Defendant is ordered to file an Answer within 5 business days. The Plaintiff is ordered to provide notice of the Court's ruling.
9	30-2026-01567557 Acosta v. Lazaro Aguilar	The Court has read and considered the Defendant's Demurrer to the Complaint (ROA 14), the Complaint (ROA 2), and Proof of Substitute Service (ROA 8). The Court OVERRULES the Demurrer. The Court, in reviewing the Proof of Substitute Service (ROA 8), finds that the Plaintiff failed to exercise reasonable diligence in attempting to personally serve the Defendant prior to using substitute service as required under California Code of Civil Procedure § 415.20(b). The attached Affidavit of Reasonable Diligence by Process Server Bryce Keizer #PS6332 shows that

[illegible]